



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: A Resolution Approving the Hitching Post Urban Renewal Plan and the Hitching Post Urban Renewal Project Pursuant to Wyoming Statute § 15-9-110.
Date: August 4, 2021

Background:

The item for consideration is a **Resolution**.

The proposed Governing Body review schedule is as follows:

- Introduction and Public Hearing 8/09/2021
- Public Services Committee 8/17/2021
- Second and Final Reading 8/23/2021

Summary:

The State of Wyoming authorizes communities to create Urban Renewal Authorities and summarizes the power of the authority in Wyoming Statute § 15-9-101 through § 15-9-137. The Governing Body created an Urban Renewal Authority on June 28, 2021, with the adoption of Ordinance No. 4381 outlining the duties of the Urban Renewal Authority in the City of Cheyenne and the adoption of Resolution No. 6156 declaring that blight existed in the community. One of the areas that was identified as blighted in the community in Resolution No. 6156 was the Hitching Post Urban Renewal Plan and Project Area. The item before you is the Urban Renewal Plan for the Hitching Post Project Area. This Plan was created pursuant to Wyoming Statute § 15-9-110. The Plan establishes the Project Area, outlines authorized Urban Renewal activities in the Project Area, and establishes a tax increment financing district.

On July 22, 2021, the City Urban Renewal Authority met and reviewed the Hitching Post Urban Renewal Plan and Project, approved it with two minor corrections, and authorized submission to the Planning Commission for review and recommendation to the Governing Body. The Planning Commission met on August 2, 2021, and recommended approval of the Plan and Project area unanimously. The Planning Commission staff report is attached to this submittal and is unchanged. Though not required by State Statute, notice of the Public Hearing was sent to all property owners within the Project Area on July 27, 2021, and notice to all impacted taxing agencies on August 2, 2021.

Attachments:

1. Resolution
2. Planning Commission Staff Report
3. Hitching Post Urban Renewal Plan

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION APPROVING THE HITCHING POST URBAN RENEWAL PLAN AND THE HITCHING POST URBAN RENEWAL PROJECT PURSUANT TO WYOMING STATUTE § 15-9-110, AND APPROVING THE CREATION OF A NEW HITCHING POST URBAN RENEWAL AUTHORITY SPECIAL REVENUE FUND.”

WHEREAS, pursuant to Resolution No. 6156 and under Wyoming Statute § 15-9-101, *et seq.*, the City of Cheyenne found certain areas to be appropriate for an urban renewal project, including the “Hitching Post Study Area” as described in Resolution 6156; and

WHEREAS, Resolution No. 6156 was adopted after hearings on June 14, 2021 and June 28, 2021 and in conformity with Wyoming Statute § 15-9-106; and

WHEREAS, Wyoming Statute § 15-9-108 requires that before approving an urban renewal project, the Governing Body shall have submitted the applicable urban renewal plan to the City Planning Commission, for review and recommendations as to its conformity with PlanCheyenne, which is the general plan for the development of the City of Cheyenne; and

WHEREAS, on August 2, 2021, the City Planning Commission: (i) reviewed the Hitching Post Urban Renewal Plan for the Hitching Post Urban Renewal Project, (ii) found the Hitching Post Urban Renewal Plan to be in conformity with PlanCheyenne, and (iii) recommended that the Governing Body adopt the Hitching Post Urban Renewal Plan for the Hitching Post Urban Renewal Project [with proposed changes to the plan as have been reported to the Governing Body / in the form presented to the Planning Commission]; and

WHEREAS, the Governing Body held a public hearing on the Hitching Post Urban Renewal Plan and Project in accordance with Wyoming Statute § 15-9-109(a); and

WHEREAS, on July 27, 2021, notice of the public hearing required by Wyoming Statute § 15-9-109(a) was mailed to all property owners; and

WHEREAS, on August 2, 2021, notice of the public hearing was mailed to all affected taxing agencies; and

WHEREAS, the Governing Body has reviewed the Hitching Post Urban Renewal Plan and Hitching Post Urban Renewal Project, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) The Hitching Post Urban Renewal Plan conforms to PlanCheyenne, and is consistent with definite local objectives respecting appropriate land uses, improved traffic, public transportation, public utilities, recreational and community facilities and other public improvements; and
- (ii) The Hitching Post Urban Renewal Plan is sufficiently complete to indicate land acquisition, demolition and removal of structures, redevelopment, improvements,

and rehabilitation as may be proposed to be carried out in the urban renewal area, zoning and planning changes, if any, land used, maximum densities and building requirements; and

WHEREAS, the Governing Body has reviewed the Hitching Post Urban Renewal Plan and Hitching Post Urban Renewal Project, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) Because the Hitching Post Urban Renewal Plan and project area boundaries do not encompass any residential properties, there is no need to designate a method for relocation of families displaced from the urban renewal area;
- (ii) The Hitching Post Urban Renewal Plan conforms to PlanCheyenne as a whole;
- (iii) The Hitching Post Urban Renewal Plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the Hitching Post Urban Renewal Plan;
- (iv) The Hitching Post Urban Renewal Plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise; and

WHEREAS, approval of the Hitching Post Urban Renewal Plan and Project authorizes division of property taxes pursuant to Wyoming Statute § 15-9-120; and

WHEREAS, division of property taxes shall be collected and deposited into a newly created Hitching Post Urban Renewal Authority Special Revenue Fund and segregated for the purpose of the Urban Renewal Authority.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body of the City of Cheyenne, Wyoming, hereby approves the Hitching Post Urban Renewal Plan and Hitching Post Urban Renewal Project and the creation of a new Hitching Post Urban Renewal Authority Special Revenue Fund.

PRESENTED, READ, AND ADOPTED this ____ day of _____, 2021.

Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

AUGUST 2, 2021

STAFF REPORT

REQUEST: Review of and recommendation to the Governing Body of the Hitching Post Urban Renewal Plan and Project

CASE NUMBER: URA-21-00001, Hitching Post Urban Renewal Plan and Project

PREPARED BY: Charles W. Bloom, AICP, Planning and Development Director
Mark Christensen, AICP Candidate, Planner II



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** and **adopt** the Hitching Post Urban Renewal Plan and Project, as recommended by the Urban Renewal Authority, noting the request meets the review criteria of Wyo. Stat. § 15-9-110.

BACKGROUND:

The item for consideration is a consideration of an Urban Renewal Plan for the Hitching Post Urban Renewal Plan and Project. The State of Wyoming authorizes communities to create Urban Renewal Authorities and summarizes the power of the authority in Wyoming Stat. § 15-9-101 through § 15-9-137. The powers authorized in the Wyoming Urban Renewal Code allow municipalities to declare areas as blighted and use tools, such as tax increment financing (TIF), to reinvest in these blighted areas.

On June 28, 2021, the City Council passed Resolution No. 6156 declaring parts of the City slum or blight and the rehabilitation, conservation, redevelopment, or a combination is necessary for the public health, safety, morals or welfare of the residents of the municipality. The resolution served to fulfill the requirements of Wyo. Stat. § 15-9-106 and was supported by a Blight Study prepared by the Planning and Development Department. This created an Urban Renewal Area in which Urban Renewal powers could be utilized. The Blight Study can be found on the City's Urban Renewal Authority website here: www.cheyennecity.org/URA. A direct link to the document is here: <https://www.cheyennecity.org/files/sharedassets/public/departments/planningdevelopment/urban-renewal-authority/blight-study-packet.pdf>.

Establishment of an urban renewal area is the first step. Within an area plans and specific projects can be adopted. Specific plans and projects can propose slum clearance or the creation of a TIF district which will divert future *additional* property tax revenue in the plan area for specific purposes for a specific time period. This diversion is considered the "increment." The Hitching Post Urban Renewal Plan and Project proposes diverting the increment to facilitate development of streets and utilities, relocation of utilities, and abatement of hazardous materials within the district for a period of 25-years. A conservative estimate is that the increment will total \$4.9 million. During the duration of the TIF, the County Assessor will still assess the property as customary and property owners will pay taxes. Any tax received above the base (the increment), will be diverted to the Urban Renewal Authority to finance activities authorized by the plan (street construction/reconstruction, utility work, and environmental remediation). This may be in the form of a bond or reimbursement to others.

On July 22, 2021, the City Urban Renewal Authority met and reviewed the Hitching Post Urban Renewal Plan and Project, approved it as presented by staff, and authorized submission to the Planning Commission for review and recommendation to the Governing Body. Two minor changes to the document were made to remove references to utilize the increment only for franchise utilities since the intent was to allow all the increment to be utilized for all utilities, including franchise. Those changes are incorporated in the attached document.

Upon recommendation by the Planning Commission the Governing Body will adopt the plan and project by resolution. Upon passing of the resolution, the base property assessment will be established at the present rate for all properties within the plan area.

This plan may be amended in the future through the same process as it was approved. Amendment may be necessary in the event the term needs to be changed or if modification of eligible expenses for the increment is desired.

REVIEW CRITERIA:

The Planning Commission's role in adoption of the Urban Renewal Plan and Project is to review and provide a recommendation to the Governing Body as to whether or not to approve. The specific review criteria is listed in Wyo. Stat. § 15-9-110 and is summarized on pages seven and eight of the attached Hitching Post Urban Renewal Plan and Project document.

CONCLUSION:

Staff concludes that this text amendment meets the applicable review criteria which is outlined in the attached Urban Renewal Plan and Project document.

STAFF RECOMMENDATION:

Staff recommends the Planning Commission recommend **approval** of the Hitching Post Urban Renewal Plan and Project as recommended by the Urban Renewal Authority, noting the request meets the review criteria of Wyo. Stat. § 15-9-110.

ATTACHMENT:

URA-approved Hitching Post Plan and Project



Hitching Post Urban Renewal Plan

City of Cheyenne



Produced July 2021
Planning and Development

Table of Contents

Introduction	1
Urban Renewal Boundaries	2
Conditions Survey	3
Authorized Urban Renewal Activities	5
Plan Financing	6
Conformance with Plans	7
Conformance with Wyo. Stat. 15-9-110	8
Plan Term	9
Amendment Procedures	9

Introduction

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

This plan serves to establish the Hitching Post Urban Renewal Project for the City of Cheyenne. The Hitching Post Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing, the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. The Hitching Post Urban Renewal Plan will be referred to the Urban Renewal Authority and City Planning Commission for recommendations. The plan and recommendations will be introduced before the Governing Body for final consideration through Resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The Hitching Post redevelopment is proposed to include a variety of commercial, residential, and office uses. While the exact redevelopment is yet to be determined, the City of Cheyenne will utilize its Urban Renewal powers to aid the redevelopment with infrastructure upgrades, the relocation of

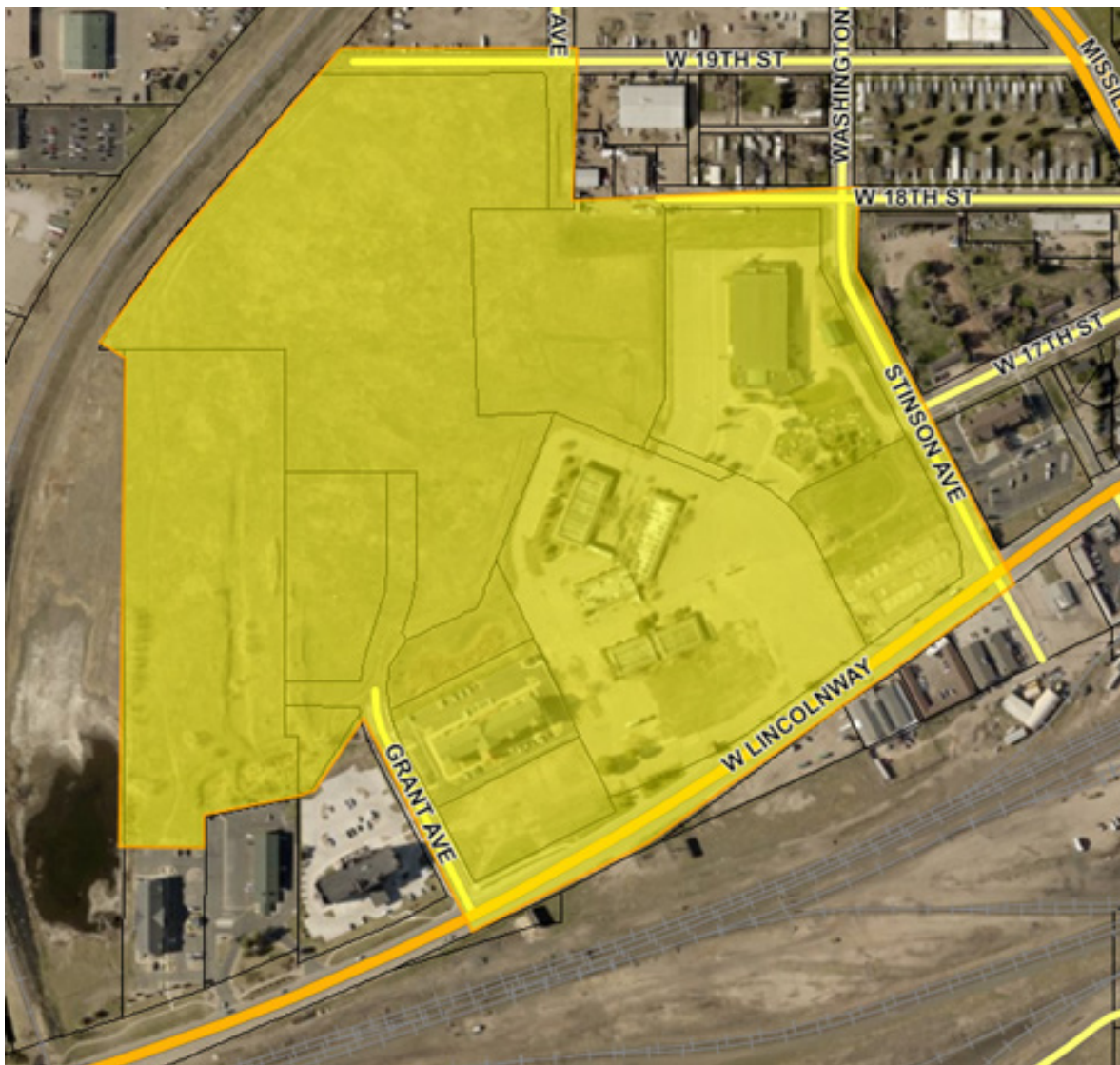
utilities, and the remediation of environmental contaminants. The City plans to use tax increment financing (TIF), enabled by WT Stat. § 15-9-120, to aid in the completion of these objectives. The use of these Urban Renewal powers and adoption of the plan will permit the redevelopment of the Hitching Post site through a robust public/private partnership and permit the utilization of Urban Renewal tools.

Urban Renewal Boundaries

The Hitching Post Urban Renewal Plan and Project encompasses the entirety of the Hitching Post property, several adjacent sites, and several adjacent rights-of-way. The map of the Urban Renewal Area can be found below.

The legal description for the project area includes:

- Lot 1, Block 1, P.A.S. First Filing;
- Lot 2, Block 1, P.A.S. First Filing;
- Lot 1, Cheyenne Ice and Events Center 2nd Filing;
- Lot 1, Block 1, Cheyenne Ice and Events Center, 3rd Filing;
- Lot 1, Block 1, Back 40 Subdivision, 1st Filing;
- Lot 1, Block 3, and Lot 1, Block 2, Back 40 Subdivision, 2nd Filing;
- Lot 1, Block 2, Lincoln Addition, 2nd Filing;
- Lot 2 and 3, Block 2, Lincoln Addition, 2nd Filing Revision A;
- Lot 3 Block 1, Rivett Subdivision, 2nd Filing;
- All public rights-of-way adjacent to the lots and blocks referenced herein; and
- West Lincolnway right-of-way between Grant Avenue and Stinson Avenue.



Conditions Survey

To identify blight areas and slum areas in the Hitching Post Urban Renewal Plan and Project Area, staff created a survey with the nine (9) conditions of blight identified in the definitions section of the Wyoming Urban Renewal Code. Staff did not utilize the conditions of slum areas as they were similar to those of blight. Staff extrapolated nine (9) distinct characteristics of blight as defined in Wyo. Stat. § 15-9-103(iii). The nine (9) conditions with one option of “Other” include:

- Deteriorated or deteriorating structures
- Predominance of defective or Inadequate street layout
- Faulty lot layout in relation to size, accessibility or usefulness
- Unsanitary or unsafe conditions
- Deterioration of site or other improvements
- Diversity of ownership, tax or other special assessments
- Delinquency exceeding the fair value of the land
- Defective or unusual conditions of title
- The existence of conditions which endanger life or property by fire and other causes
- Other

The “other” option pertained to the section of the definition that stated, “or any combination of those factors, substantially impairs or arrests the sound growth of a municipality, retards the provision of housing accommodations or constitutes an economic or social liability and is a menace to the public health, safety, morals or welfare in its present condition and use.” (Wyo. Stat. § 15-9-103(iii)). After listing the conditions, the survey had the option for staff to use a checkbox for each condition that existed and to provide a description of indicators that were used to conclude that the condition was present. The end of the survey allowed staff to provide notes for anything of importance. Unlike other neighboring states, notably Colorado, the Wyoming Urban Renewal Code does not establish a threshold for the number of blight conditions that must be found to qualify an area for Urban Renewal. Based on this, if any one of the nine (9) conditions are identified on the site it is sufficient to determine the area as blighted.

The Hitching Post Urban Renewal Plan and Project area was surveyed on May 24, 2021. The site contained six (6) of the nine (9) conditions of blight identified on the survey, demonstrating that the project area is blighted and in need of redevelopment.

Deteriorated or Deteriorating Structures

The study area contains several examples of deteriorated or deteriorating structures. Most of the buildings on the Hitching Post property are either boarded up or burned and the walkway between two of the buildings has partially collapsed. In addition to the buildings on the Hitching Post site, other buildings in the area show evidence of deterioration. The prevalence of deteriorating buildings as depicted in the supporting photographs fulfills this condition of blight.

Predominance of Defective or Inadequate Street Layout

The Hitching Post study area contains approximately 50 acres. The subject area has very few connections and many of the connections present are access easements. The street network through the area is not sufficient for urban development and many connections will need to be planned and built. Furthermore, the access easements are not built to city street standards and will need improvements in the future. Lastly, staff has had many discussions on the as-yet determined status of West 18th Street and whether or not it has been vacated in the past (a point that needs further research), further complicating the street network in the area. Due to the faulty street network through the Hitching Post, the status of West 18th Street, and the lack of connections through the Back 40 subdivision, staff is satisfied this condition of blight is met.



Faulty Lot Layout in Relation to Size, Accessibility or Usefulness

Several of the parcels in the Hitching Post property are large with no lot frontage or direct right-of-way access. Again, the lack of internal connections through the site lead to accessibility issues and a lack of pedestrian connections. The study area is designated as a Community/Regional Activity Center in PlanCheyenne, yielding a maximum block size with a 2000' perimeter and 600' maximum on any one block face per Unified Development Code Table 4-6. Currently the site has approximately 1500' of frontage on one block face and an incomplete block structure due to lack of connections, though if one were to complete the block it would be approximately 5250' of perimeter. The size of the blocks, lack of pedestrian routes, and lack of internal connections yield a faulty lot layout in relation to size, accessibility and usefulness; thus, meeting this condition of blight.

Unsanitary or Unsafe Conditions

A recent Phase I Environmental Site Assessment was completed at the Hitching Post in May of 2021. The Phase I ESA reiterated that the site contains various unsafe conditions; including the presence of lead-based paint, asbestos-containing building materials, mercury-containing thermostats, and mold. In addition to the recognized environmental conditions on-site making the site unsafe and unsanitary, staff documented the presence of abandoned mattresses, trash, and fire damaged buildings. There are also noted unconnected sidewalks which lead to unsafe conditions for pedestrians. All of the conditions noted meet the criteria for unsafe and unsanitary conditions as an indicator of blight at the property.

Deterioration of Site or Other Improvements

Staff noted several conditions of deterioration of site improvements at the Hitching Post study area. The deterioration included curb, gutter, sidewalk, and areas around a storm sewer drain. In addition to these conditions of deterioration, staff also noted a downed light pole on the Hitching Post property. The deterioration of site conditions is illustrative of blight in the study area.

The Existence of Conditions which Endanger Life or Property by Fire and Other Causes

The two main indicators of the site that meet these conditions include the fire damaged building and the presence of environmental contamination. As mentioned previously, a recent Phase I Environmental Site Assessment documented several conditions that are recognized as hazardous by the Environmental Protection Agency. The existence of a fire damaged building also leads to concern as the buildings have become unstable and possibly endanger life.



Authorized Urban Renewal Activities

The conditions identified in the plan and project area yield that the property is in need of rehabilitation and that such redevelopment is in the best interest of the public health, safety, morals and welfare of the community. The City of Cheyenne will use the Urban Renewal powers authorized to improve streets and sidewalks, relocate utilities, and remediate environmental contamination, all of which are enabled by the Wyoming Urban Renewal Code. In addition to the general municipal powers of Wyo. Stat. § 15-9-113, this plan hereby authorizes the use of tax increment financing per Wyo. Stat. § 15-9-120 to accomplish the stated actions authorized by the Wyoming Urban Renewal Code.

Tax Increment Financing Wyo. Stat. § 15-9-120

Pursuant to Wyo. Stat. § 15-9-120, the Hitching Post Urban Renewal Plan authorizes the use of tax increment financing for the Urban Renewal Project Area as identified in Section II. Wyo. Stat. § 15-9-120 states:

(a) Any urban renewal plan may contain a provision that taxes, if any, levied upon taxable property in an urban renewal project each year by or for the benefit of a municipality in the state shall be divided as follows:

(i) That portion of the taxes which would be produced by the rate upon which the tax is levied each year by or for each of the taxing agencies upon the total sum of the assessed value of the taxable property in the urban renewal project as shown upon the assessment roll used in connection with the taxation of the property by the taxing agency, last equalized prior to the effective date of the urban renewal project shall be allocated to and, when collected, paid into the funds of the respective taxing agencies as taxes by or for those taxing agencies on all other property are paid (for the purpose of allocating taxes by or for any taxing agency which did not include the territory in the urban renewal project on the effective date of the project but which territory had been annexed or otherwise included after the effective

date, the assessment of the county last equalized on the project shall be used in determining the assessed valuation on the taxable property in the project on the effective date); and

(ii) That portion of the levied taxes each year in excess of the amount specified in paragraph (a)(i) of this section shall be allocated to and, when collected, paid into a special fund of the participating municipality or urban renewal agency to pay the principal and interest on loaned money advanced to, or any indebtedness incurred by the municipality or urban renewal agency. Unless the total assessed valuation of the taxable property in an urban renewal project exceeds the total assessed value of the taxable property in the project as shown by the last equalized assessment roll referred to in paragraph (a)(i) of this section, all of the taxes levied and collected upon the taxable property in the urban renewal project shall be paid into the funds of the respective taxing agencies. When any loans, advances and indebtedness, if any, and interest have been paid in full, all monies thereafter received from taxes upon the taxable property in the urban renewal project shall be paid into the funds of the various taxing agencies as taxes on all other property are paid.

The tax increment will be used to fulfil the purposes of Wyo. Stat. § 15-9-121, which reads:

In any urban renewal plan or in proceedings for the advance of monies or making of loans or the incurring of any indebtedness by the municipality or agency to finance or refinance in whole or in part the urban renewal project, the portion of the taxes specified in W.S. 15-9-120(a)(ii) may be irrevocably pledged for the payment of the principal of and interest on those loans or advances or that indebtedness.

Plan Financing

The Hitching Post Urban Renewal Project Area includes a mix of vacant land, deteriorated structures, civic facilities, and some developed land. Collectively, the base valuation for the project is \$8,782,808. There are a few small vacant parcels where tax information was not readily available and will need to be confirmed by the County Assessor's Office. Within the Project Area, the property tax revenue collected to all jurisdictions is roughly \$60,191 as of 2020.

Currently, there is interest in development of the Hitching post site to include a new hotel, restaurant, and bank as seen in Map 1. The future development of the land behind the hotels is uncertain and may include some combination of commercial or residential. The plan financing is dependent upon completion of the proposed projects as well as future development on the site as shown in Map 2, which is roughly 25 acres.

Base Valuation					
Parcel ID Number	Property Address	Valuation (2020)	Assessed Valuation (2020)	Property Tax (2020)	Notes
13670110500600	W. Lincolnway	\$791,231	\$75,167	\$5,423	
13670111002300	Grant Avenue	\$1,551,215	\$147,365	\$10,631	
13670111002200	Grant Avenue				(Tax information not available)
13670111002100	Grant Avenue				(Tax information not available)
13670111002000	Grant Avenue	\$0	\$0	\$0	Exempt City
13670111700100	1524 W. Lincolnway	\$292,600	\$27,797	\$2,005	
13670111600100	1530 W. Lincolnway	\$0	\$0	\$0	Exempt City
13670111001200	W. Lincolnway	\$0	\$0	\$0	Exempt City
13670111001100	1600 W. Lincolnway	\$773,212	\$73,455	\$5,299	
13670111001700	Grant Avenue	\$164,591	\$15,636	\$1,128	
13670111001600	1710 W. Lincolnway	\$5,094,155	\$483,994	\$34,912	
13670111001400	Grant Avenue	\$115,804	\$11,001	\$794	
TOTAL:		\$8,782,808	\$834,365	\$60,191	



Map 1 - Area of expected development



Map 2 - Area of anticipated future development

Based on the known development, the anticipated tax increment available under the Urban Renewal Statute is estimated at just under \$1.8 million over a 20-year term. Over a 20-year term and at current interest rates, the URA could anticipate obligating debt for public improvements of \$800,000 to \$1 million. If the future development occurs on Map 2 and hypothetically included 10,000 square feet of new commercial space and 100 units of multi-family rental housing, the TIF revenue increases substantially and could allow additional investments of up to \$3 million or greater depending on interest rates and term. See the chart below that estimates projected Tax Increment revenue over a 20-year period with known development and with anticipated future development.

Tax Increment Revenue Estimates	
	TIF Revenue / 20 years
Existing Development	\$1,773,550
w/ Anticipate Future Development	\$4,929,985

The URA in collaboration with the City will need to complete final plans and cost estimates for public improvements. Additionally, the URA will likely engage in negotiations with the developer to confirm project scope and timeframe for completion prior to making any financial investments.

Conformance with the Comprehensive Plan

PlanCheyenne is the comprehensive plan for the City of Cheyenne. The Hitching Post Urban Renewal Plan conforms to and advances the intent of PlanCheyenne. First, the redevelopment of the Hitching Post accomplishes several Foundations of the comprehensive plan. The Foundations laid out in the plan articulate what is important when making decisions about Cheyenne's future. This urban renewal plan furthers Foundation 1 – Growing as a Community of Choice; Foundation 3 – Fostering a Vital Economy and Activity Centers; and Foundation 7- Developing in a Fiscally Responsible Way. Growing as a Community of Choice specifies that the community will be competitive in the region by providing a wide variety of housing choices, attracting new jobs, and fostering opportunities for retail and service uses. The redevelopment of the Hitching Post through Urban Renewal will afford private enterprise the opportunity to develop housing, places of employment, and new hotels and restaurants as is the intent of the prospective purchaser. Fostering a Vital Economy and Activity Center details that the community should make an attractive environment for businesses and workers to invest their energy and resources. The project area redevelopment will encourage precisely this sort of environment with residential, office, and commercial uses. It is anticipated the site will be an activity center in the City of Cheyenne. Developing in a Fiscally Responsible Way challenges decision makers to efficiently use public and private resources as the community continues to grow. Investing in an infill development site with tax increment financing with a proposed public/private partnership significantly increases the opportunity for revitalization on an important corridor in the community in a fiscally responsible manner.

In addition to promoting these key foundations in the plan, the Hitching Post Urban Renewal Plan furthers several policies contained within PlanCheyenne.



Plan Cheyenne policies include:

- Policy 1.1.B: Flexibility to Respond to Market Demands.
The Urban Renewal Plan will promote infill development and redevelopment of an important area in the City of Cheyenne. The flexibility will incentivize private enterprise to complete the redevelopment of the Hitching Post and near vicinity.
- Policy 1.4.A: Infill Opportunities
The Hitching Post Project Area lies within an area in the community that is already developed. The use of TIF to finance the relocation of utilities and construct the necessary infrastructure to service the proposed development will serve to accomplish this policy goal.
- Policy 1.4.B: Locations for Future Revitalization
This policy outlines West Lincolnway from I-25 to Downtown as a primary location for redevelopment in the City. The proposed project is located along this corridor and its construction is expected to serve as a catalyst for economic development in this important community gateway.
- Policy 1.4.D: Infill and Revitalization Incentives
The Urban Renewal Powers offer infill and revitalization incentives by enabling financing for public improvements and opportunities for public/private partnerships.
- Policy 2.3.A: Mix of Housing Types
The redevelopment of the project area is anticipated to create a variety of housing options, including the opportunity for the integration of affordable housing. This opportunity for housing development may not be possible without the use of Urban Renewal powers.

In addition to furthering many objectives within PlanCheyenne, the Hitching Post Urban Renewal Plan conforms to the Future Land Use Map contained within Connect 2045: Cheyenne Area Transportation Master Plan. The subject property is designated in the Future Land Use Map as a combination of Mixed-Use Commercial and Mixed-Use Residential. The proposed multi-family residential, parks and recreation facilities, and commercial use fulfills these future land use designations. Through addressing the Foundations, several policies, and the Future Land Use Map of PlanCheyenne, the Hitching Post Urban Renewal Plan substantially conforms to the general plan of the municipality.

Conformance with Wyo. Stat. §15-9-110

In order for an Urban Renewal Plan and Project to be approved the Governing Body must find that the plan meets the review criteria found in Wyo. Stat. § 15-9-110(a) and (b). Due to the fact that the Hitching Post Urban Renewal Plan does not consist of the acquisition of open space to be acquired by the municipality, the plan will not address the findings of Wyo. Stat. § 15-9-110(b). Pursuant to Wyo. Stat. § 15-9-110(a), the plan achieves the following requirements:

- (i) A feasible method exists for the relocation of families who will be displaced from the urban renewal area in decent, safe and sanitary dwelling accommodations within their means and without undue hardship to those families;

The plan and project area boundaries do not encompass any residential properties; therefore, there is no need to designate a method for relocation of families displaced from the urban renewal area.

- (ii) The urban renewal plan conforms to the general plan of the municipality as a whole;

PlanCheyenne is the Comprehensive Plan for the City of Cheyenne. As discussed in the previous section, the Hitching Post Urban Renewal Plan conforms to PlanCheyenne.

- (iii) The urban renewal plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the plan;

The Hitching Post Project Area contains the Cheyenne Ice and Events Center and an adjacent property owned by the City of Cheyenne that is deed restricted for recreation purposes. The redevelopment of the project area is anticipated to include a variety of housing types, from single-family residential to multi-family condominiums and apartments.

The recreation facilities owned by the City of Cheyenne and the required open space of the new development per the Unified Development Code will serve as an amenity to the proposed and existing residential development in the vicinity. The health, safety, and welfare of current and future residents will be enhanced by the existing and future recreational facilities.

- (iv) The urban renewal plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise.

The Hitching Post Urban Renewal Plan affords the maximum opportunity for redevelopment by private enterprise. The City anticipates using funds collected under tax increment financing to pay the principal and interest on loaned money for the relocation of utilities, the construction of public improvements such as street and sidewalks, and the demolition and disposal of buildings containing environmental contaminants. The use of the urban renewal powers in this fashion enhances the viability of the redevelopment of the subject properties by private enterprise. The proposed urban renewal actions by the City are anticipated to catalyze development by private enterprise on an important gateway to the City of Cheyenne, thus promoting the overall health, safety, welfare, and morals of the community.



Plan Term

The Term of the Hitching Post Urban Renewal Plan is 25 years from the approval of the Resolution by the Governing Body. The Plan shall be effective pursuant to Wyo. Stat. § 15-9-111(b). If the Authority deems that all projects have been accomplished and all debts incurred to finance those projects and all expenses of the Authority have been repaid, the Authority may declare this Plan fully implemented and the total tax collections derived from this Plan Area shall be paid into the funds of the appropriate taxing entity.

Amendment Procedures

This plan shall be amended pursuant to Wyo. Stat. § 15-9-111(a). All modifications to this Plan will be referred from the Urban Renewal Authority Board to the City of Cheyenne Governing Body and shall be approved by Resolution.